

Bhimarayagouda And Ors vs Smt. Bhagawwa And Anr on 5 July, 2024

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NC: 2024:KHC-K:4622-DB
RFA No.200216 of 2019

IN THE HIGH COURT OF KARNATAKA,

KALABURAGI BENCH

DATED THIS THE 5TH DAY OF JULY, 2024

PRESENT

THE HON'BLE MR. JUSTICE ASHOK S. KINAGI
AND

THE HON'BLE MR. JUSTICE RAJESH RAI K

REGULAR FIRST APPEAL NO.200216 OF 2019 (PAR)

BETWEEN:

1. BHIMARAYAGOUDA
S/O DEVAPPAGOUDA PATIL
AGE: 72 YEARS,
OCC: AGRICULTURE,
2. SMT. KALLAWA
W/O BHIMARAYAGOUDA PATIL,
AGE: 59 YEARS,
OCC: H.H.WORK,
3. RAMACHANDRAGOUDA

S/O BHIMARAYAGOUDA PATIL,
AGE: 59 YEARS,
OCC: H.H.WORK,
4. NADAGOUDA
S/O BHIMARAYAGOUDA PATIL,
AGE: 35 YEARS,
OCC: AGRICULTURE,
5. BABUGOUDA
S/O BHIMARAYAGOUDA PATIL,

Digitally signed by
BASALINGAPPA
SHIVARAJ
DHUTTARGAON

Location: HIGH
COURT OF
KARNATAKA

AGE: 33 YEARS,
OCC: AGRICULTURE,
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6. SAHEBGOUDA
S/O BHIMARAYAGOU DA PATIL,
AGE: 31 YEARS,
OCC: AGRICULTURE,

7. SUNANDA
D/O BHIMARAYAGOU DA PATIL,
AGE: 29 YEARS,
OCC: H.H.WORK,

8. MAHANANDA
W/O SHRISHAIL HALASANGI,
AGE: 27 YEARS,
OCC: H.H.WORK,

ALL ARE R/O: BALAGANUR,
TQ: SINDAGI,
DIST: VIJAYAURA - 586 101.

...APPELLANTS

(BY SRI I.R.BIRADAR AND SMT. REKHA M. PATIL,
ADVOCATES)

AND:

1. SMT. BHAGAWWA
W/O MALAPPA HALASANGI,
AGE: 39 YEARS,
OCC: H.H.WORK,
RESIDING AT BALAGANUR,
TQ: SINDAGI,
DIST: VIJAYAPURA - 586 101.

2. SMT. SHIREWWA
W/O SHRIDHAR PUJARI
AGE: 34 YEARS,
OCC: H.H.WORK,
RESIDING AT BALAGANUR,
TQ: SINDAGI,
DIST: VIJAYAPURA - 586 101.

...RESPONDENTS

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(BY SRI S.S.MAMADAPUR, ADVOCATE FOR R1;
SRI SHIVANAND PATIL, ADVOCATE FOR R2)

THIS REGULAR FIRST APPEAL IS FILED UNDER SECTION 96 OF THE CODE OF CIVIL PROCEDURE, PRAYING TO SET ASIDE THE JUDGMENT AND DECREE DATED 25.11.2019 PASSED BY THE LEARNED SENIOR CIVIL JUDGE AND J.M.F.C., SINDAGI IN O.S.NO.6/2015 BY DISMISSING THE SAID SUIT OF THE PLAINTIFF, IN THE INTEREST OF JUSTICE AND EQUITY.

THIS REGULAR FIRST APPEAL, COMING ON FINAL HEARING THIS DAY, ASHOK S. KINAGI J., DELIVERED THE FOLLOWING:

JUDGMENT

This Regular First appeal is filed by the appellants challenging the judgment and preliminary decree dated 25.11.2019 passed in O.S.No.6/2015 by the learned Single Civil Judge and JMFC, Sindagi.

2. The parties are referred to as per their ranking before the trial Court. The appellants are defendant Nos.1 to 8, respondent No.1 is the plaintiff and respondent No.2 is defendant No.9.

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3. The brief facts giving rise to filing of this appeal are as under:

Plaintiff filed a suit for partition and separate possession claiming $\frac{1}{2}$ share in the suit schedule properties. It is the case of the plaintiff that, the landed properties are the ancestral properties. Insofar as the relationship between the plaintiff and defendants are that defendant No.1 had two wives by name Smt. Neelamma, the first wife and Smt. Kallawwa, the second wife. During the life time of his first wife Neelamma, defendant No.1 had married Smt. Kallawwa i.e., defendant No.2, so the plaintiff being the only daughter from Smt. Neelamma is entitled to $\frac{1}{2}$ share in the suit schedule properties, whereas defendant Nos.3 to 9 being the children from second wife of defendant No.1 i.e., defendant No.2 are not entitled for share on the suit properties. It is contended that land bearing R.S.No.70 was standing in the name of her mother till her death on 19.05.2010, so also the plaintiff and defendant No.1 being the legal representatives of Smt. Neelamma are entitled for $\frac{1}{2}$ share in the land bearing Sy.No.70, wherein, the defendant No.1 asserting himself to be an exclusive owner has effected the partition and allotted shares to the defendants. The plaintiff requested the defendant No.1 for the legitimate share in the suit

schedule properties. The defendant No.1 refused to give her share. Hence, cause of action arose for the plaintiff to file the suit for partition and separate possession.

4. Defendant Nos.1 to 8 filed the written statement contending that the plaintiff has suppressed the material fact and deliberately not included the properties bearing R.S.No.709 measuring 12 acres 13 guntas and R.S.No.703 measuring 6 acre 19 guntas of Balaganur village. The said properties were inherited by Smt. Neelamma i.e., mother of plaintiff and wife of defendant No.1 from her father and after the death of Smt. Neelamma, defendant No.1 and the plaintiff are her legal heirs but those two properties are not brought in the hotchpotch. It is contended that land R.S.No.70 totally NC: 2024:KHC-K:4622-DB measuring 29 acres 18 guntas was purchased by defendant No.1 on 26.07.1968. The vendors of R.S.No.70 have filed a suit in O.S.No.178/2010 for the relief of declaration, which is pending for consideration. The mother of the plaintiff filed a Civil Miscellaneous No.56/1987 against the defendant No.1 for maintenance which ended in a compromise and the land R.S.No.70 was given to the mother of the plaintiff for maintenance with a condition that after her death same shall revert back to the defendant No.1, so R.S.No.70 is the self acquired property of defendant No.1 in which the plaintiff cannot claim any share. It is contended that during the year 2008, the brother of defendant No.1 had filed a suit in O.S.No.258/2008 for partition and separate possession of joint family properties. In the said compromise, R.S.No.70 was allotted to the share of defendant No.1 and the said property is the self acquired property of defendant No.1. Being the exclusive owner of R.S.No.70, the defendant No.1 has effected a partition amongst his son's. It is contended that plaintiff transferred the lands owned by NC: 2024:KHC-K:4622-DB her mother to her grandson with an intention to defeat the legitimate right of defendant No.1. Hence, on these grounds, prays to dismiss the suit.

5. The Trial Court, on the basis of the above said pleadings, framed the following issues:

1. Whether the plaintiff proves that she along with the defendants constitute an undivided joint family?
2. Whether the plaintiff proves that the suit schedule-A properties are ancestral in nature?
3. Whether the plaintiff proves that she has a legitimate share in the suit properties?
4. Whether the defendant No.1 proves that R.S.No.70 of Hikkangutti is his self acquired property?
5. Whether the plaintiff is entitled for the relief as prayed for?
6. What order or decree?

6. Plaintiff in order to substantiate her case, examined herself as PW-1 and got marked 34 documents as Exs.P1 to P34. In rebuttal, defendant No.1 was examined himself as DW-1 and got marked 8 documents as Exs.D1 and 8. The trial Court after recording the NC:

2024:KHC-K:4622-DB evidence, hearing on both sides and on the assessment of oral and documentary evidence of the parties, answered issue Nos.1 to 3 and 5 in the affirmative and issue No.4 in the negative, consequently, decreed the suit by the judgment dated 25.11.2019.

7. The defendant Nos.1 to 8, aggrieved by the judgment and preliminary decree passed in O.S.No.6/2015, filed this Regular First Appeal.

8. Heard the learned counsel for the defendant Nos.1 to 8 and learned counsel for the plaintiff. submits that the land bearing R.S.No.70 was purchased by defendant No.1 and the said Sy.No.70 is the self acquired property of defendant No.1. She submits that the plaintiff is not entitled to claim any share in the Sy.No.70. She also submits that the plaintiff has not included the lands owned by her mother i.e., land bearing Sy.Nos.709 and

703. Hence, suit for partial partition is not maintainable.

NC: 2024:KHC-K:4622-DB She submits that the trial Court ought to have dismissed the suit on the ground that suit for partial partition is not maintainable, on the contrary, trial Court has decreed the suit. Hence, the trial Court has committed an error in passing the impugned judgment. Hence, on these grounds, she prays to allow the appeal.

10. Per contra, learned counsel for the plaintiff submits that, admittedly, the suit schedule properties are the ancestral and joint family properties of plaintiff and defendant No.1. He submits that during the life time of Smt.Neelamma, defendant No.1 performed the marriage with Kallawwa i.e., defendant No.2. The marriage of defendant No.1 with defendant No.2 is void as per Section 5(i) of Hindu Marriage Act, 1955. He submits that the plaintiff and defendant No.1 are the members of Hindu undivided family. There is no partition effected between the plaintiff and defendant No.1. Further, he submits that defendant Nos.3 to 9 have no right to claim any share in the suit schedule properties during the life time of

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NC: 2024:KHC-K:4622-DB defendant No.1. Admittedly, defendant Nos.3 to 9 are born to defendant Nos.1 and 2 and their marriage is void. Any children born out of void marriage are not entitled for share in the ancestral properties and during the life time of defendant No.1. In order to buttress his argument, he has placed reliance on the judgment of Hon'ble Apex Court in the case of REVANASIDDAPPA AND OTHERS VS. MALLIKARJUN AND OTHERS reported in 2023 SCC ONLINE 1087, Hence, on these grounds, he prays to dismiss the appeal.

11. We have perused the records and considered the submissions of learned counsel for the parties.

12. The points that arise for our consideration are as follows:

1. Whether the plaintiff proves that she along with defendant No.1 constituted an undivided joint family?

2. Whether the plaintiff proves that suit A schedule properties are the ancestral properties of plaintiff and defendant No.1?

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3. Whether Defendant No.1 proves that R.S.No.70 of Hikkangutti is his self acquired property?

4. Whether the defendants prove that judgment and preliminary decree passed by the trial Court is arbitrary and erroneous?

5. What order?

13. Point No.1: The plaintiff in order to establish her case, examined herself as PW.1. She has reiterated the plaint averments in the examination-in-chief. Further, there is no dispute that the plaintiff is the daughter of defendant No.1 born through Smt. Neelamma i.e., the first wife. During the life time of Smt.Neelamma, Bheemanagowda married to Smt.Kallawwa, second wife i.e., defendant No.2 and defendant Nos.3 to 9 are the children born to defendant Nos.1 and 2. Admittedly, during the life time of Smt.Neelamma, defendant No.1 married to defendant No.2. The said marriage is void as per Section 5(i) of Hindu Marriage Act, i.e., A marriage may be solemnized between any two Hindus, if neither party has a spouse living at the time of marriage. Admittedly,

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NC: 2024:KHC-K:4622-DB Smt.Neelamma was alive during the alleged marriage of Bheemanagowda with defendant No.2 - Smt.Kallawwa. Defendant No.1 has not denied his relationship with the plaintiff. Further they constituted the undivided family members. In view of the above discussion, we answer point No.1 in the affirmative.

14. Point Nos.2 and 3: Point Nos.2 and 3 are interlinked with each other. Hence they are taken together for common discussion in order to avoid the repetition of facts. It is the case of the plaintiff that, suit A schedule properties are the ancestral properties of the plaintiff and defendant No.1. In order to prove that the suit schedule properties are the ancestral properties of the plaintiff and defendant No.1, plaintiff has produced the documents i.e., ROR, marked as Exs.P1 to 8 in respect of land bearing Sy.No.70/1 to 70/9. Exs.P9 to 12 are the ROR of Sy.No.48, Ex.P13 is the ROR of Sy.No.396, Ex.P14 is the ROR of Sy.No.332, Ex.P15 to 25 are the certified copies of the mutation extracts, Ex.P26 is the death certificate of

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NC: 2024:KHC-K:4622-DB Smt.Neelamma, Exs.P27 to 29 are the mutation extracts. Exs.P30 and 31 are the ROR of Sy.No.709, Sy.No.703/1. Exs.P32 to 34 are the certified copies of mutation extracts.

15. In the course of cross examination, it was suggested to PW.1 that land bearing Sy.Nos.709 and 703/1 were the properties of the mother of plaintiff i.e, Smt.Neelamma as she has acquired those properties from her parents. She admits that said properties were acquired by her mother from her parents and she also admits that said properties are not a joint family properties of the plaintiff and defendant No.1 and she has not included the said properties in the suit. It was elicited from the mouth of PW.1 that Smt.Neelamma is the daughter of Somalingappa. After his demise, the said properties came to her mother and after the demise of her mother the name of plaintiff is appearing in the revenue records and it reflects in ME No.7594. The defendants also not denied that suit schedule properties are the ancestral properties of the plaintiff and defendant No.1. The defence of the

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NC: 2024:KHC-K:4622-DB defendant that defendant No.1 purchased the land bearing Sy.No.70 under the registered sale deed and the said property is the self acquired property of the defendant No.1 and during the life time of defendant No.1 the plaintiff has no right to claim a share in Sy.No.70 and further in Sy.No.396 is concerned.

16. In rebuttal, defendant No.1 was examined as DW.1 and he has reiterated the written statement averments in the examination-in-chief and produced the documents Ex.D1 is the certified copy of the order sheet passed in O.S.No.264/2015, Ex.D2 is the certified copy of the plaint in O.S.No.264/2015, Ex.D3 is the certified copy of the written statement in O.S.No.264/2015, Exs.D4 and 5 are the certified copy of the issues, Ex.D6 is the certified copy of the plaint in O.S.No.178/2010, Ex.D7 is the certified copy of the written statement in O.S.No.178/2010, Ex.D8 is the certified copy of the issues framed in O.S.No.178/2010. In the course of cross examination, DW.1 has admitted the suit schedule

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NC: 2024:KHC-K:4622-DB properties except in Sy.Nos.70 and 396 rest of the properties are ancestral properties of the plaintiff and defendant No.1.

17. From the perusal of oral evidence of PW.1 and DW.1 and the documents produced by the parties, it discloses that suit A schedule properties are the ancestral properties of the plaintiff and defendants. Though it is the case of the defendants that defendant No.1 purchased the land bearing Sy.No.70 and the said land is the self acquired property of defendant No.1. DW.1 during the course of cross examination has clearly admitted that he had purchased the said land out of the income derived from the ancestral property. Further, plaintiff has also proved that the family had a nucleus for purchasing the land bearing Sy.No.70. Hence, Sy.No.70 is the joint family property of plaintiff and defendant No.1, as same has been purchased from the joint family nucleus.

18. We held that defendant No.1 is not the absolute owner of R.S.No.70 as it the joint family property of

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NC: 2024:KHC-K:4622-DB plaintiff and defendant No.1 and the trial Court was justified in holding that R.S.No.70 is purchased out of joint family nucleus and it is a joint family property. It is the case of the defendant that the plaintiff has not included Sy.Nos.709 and 703/1. The learned counsel appearing for the defendants before the trial Court during the course of arguments fairly submitted that the properties bearing Sy.Nos.709 and 703 were Stridhana properties of the plaintiff and are the exclusive properties of the plaintiff and are not the joint family properties. On the submission made by the learned counsel for the defendants that, the trial Court has recorded its finding that Sy.Nos.709 and 701 are not the joint family properties of plaintiff and defendant No.1. The defendants themselves made concession before the trial Court stating that the said Sy.Nos.709 and 703/1 are not the joint family properties of plaintiff and defendant No.1. It is the case of the defendants that Sy.No.70 was given to Smt. Neelamma in compromise with a condition that after the demise of Smt. Neelamma, the said property reverted back to the

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NC: 2024:KHC-K:4622-DB defendant No.1. In view of the above discussion, we answer point No.2 in the affirmative and point No.3 in the negative.

19. Point No.4: The trial Court considering the evidence of parties and on the basis of the submissions made by the learned counsel for the defendants has rightly passed the judgment. Admittedly, the plaintiff and defendant No.1 being the members of Hindu Undivided family and she being the daughter and is a coparcener is entitled for equal share as per Section 6 of Hindu Succession Act, 1956. The trial Court was justified in granting $\frac{1}{2}$ share to the plaintiff's in the suit schedule properties. The trial Court was justified in passing the impugned judgment. We do not find any error in the impugned judgment. We decline to interfere with the impugned judgment.

20. Accordingly, we proceed to pass the following:

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NC: 2024:KHC-K:4622-DB ORDER The appeal is dismissed.

Judgment and decree passed by the trial Court is hereby confirmed.

No order as to the costs.

Sd/-

JUDGE Sd/-

JUDGE SKS